

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT STATUS REPORT AND PROPOSED REVISED DISCOVERY SCHEDULE

Pursuant to Your Honor's December 8, 2021 Order, Complainant MCS Industries, Inc. ("MCS") and Respondent MSC Mediterranean Shipping Company SA ("MSC"), collectively the "Parties," by their respective undersigned counsel, have conferred and submit this joint status report and proposed revised discovery schedule.

The proposed revised discovery schedule reflects, in part, the additional time needed to accommodate the third-party fact discovery and deposition scheduling issues raised in Complainant MCS's prior motion to extend the discovery schedule. Those will extend well into next month at the least. The proposed revised discovery schedule also reflects the fact that both parties, in view of Your Honor's December 8 Order, intend to seek additional discovery. Additionally, Respondent MSC's compliance with Your Honor's December 8 Order will likely require governmental approvals under Swiss law (specifically, Article 271 of the Swiss Criminal Code). Respondent MSC has sought advice from Swiss counsel to identify the most expeditious way forward, but to the extent governmental action is required to address any Swiss sovereignty issues, the timelines are necessarily uncertain.

The Swiss blocking statutes do not implicate Respondent MSC's compliance with voluntary discovery; thus, the proposed revised discovery schedule reflects that even if discovery subject to Your Honor's December 8 Order may be delayed, supplemental discovery exchanged

between the Parties, and the third-party discovery now being pursued can proceed in parallel with that process.

The Parties agree on the proposed revised discovery schedule on the basis that such proposed timing would not prejudice either of the Parties' ability to (1) review further productions and responses, including for compliance with the Order, in advance of taking fact depositions, (2) notice, prepare for, and take fact depositions on the basis of a substantially complete factual record, and (3) otherwise complete discovery in an orderly and efficient manner.

In order to avoid prejudice to either of the Parties, and in view of the uncertainty in timing due to the potential need for governmental approvals, the Parties jointly request that the Presiding Officer extend the initial decision date in this case beyond the date contemplated by the original August 3, 2021 Notice of Filing of Complaint and Assignment, and jointly propose the following revised discovery schedule:

Event	Deadline
Target for the Parties to serve supplemental requests for production ("RFPs") of documents and electronically stored information ("ESI")	January 21, 2022
Target for substantial completion of productions of documents and ESI in response to supplemental requests	March 4, 2022
Target for exchange of privilege logs on supplemental requests	March 11, 2022
Target for MSC's full compliance with Order Granting Motion to Compel and production of associated privilege log to MCS	"New Target"
Target to complete depositions of fact witnesses	84 days after New Target
Disclosure of initial expert reports	91 days after New Target
Last day to serve RFPs, interrogatories, and requests for admission	98 days after New Target
Disclosure of rebuttal expert reports	105 days after New Target
Complete expert depositions	119 days after New Target
Close of discovery	128 days after New Target

The Parties also discussed anticipated motions practice. Respondent MSC plans to file a motion to dismiss, or alternatively if necessary as to some counts for summary disposition, as indicated in its Response to the Motion to Compel, and Complainant MCS reserves its right to file or oppose any motions, including on the basis that discovery is not yet complete. Consistent with Your Honor's omission of a specific deadline for motions for summary decision in the September 23, 2021 Scheduling Order, the Parties are not proposing any specific deadline for such motions prior to the end of the discovery schedule. MSC will not seek any stay of discovery in connection with any such motion.

Respectfully submitted,

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